UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Midcontinent Independent System Operator, Inc.	)	Docket No. ER27-25-000

LIMITED PROTEST OF GOOGLE LLC

Pursuant to Rule 211 of the Rules of Practice and Procedure of the Federal Energy Regulatory Commission ("Commission"),[1] Google LLC ("Google") submits this limited protest of Midcontinent Independent System Operator, Inc.'s ("MISO") proposal to establish a Large Load Addition Resource Study ("LARS") process.[2] Google commends MISO for working proactively to address the concerns that the Commission identified in the Large Load Show Cause Order.[3] The concept underlying LARS is a particularly important one that is worth prioritizing, and it is a concept that Google continues to strongly support. Studying new large loads together with paired generation resources that will serve those loads will maximize the use of existing infrastructure and minimize strain on the grid,[4] which will, in turn, accelerate interconnection

[1] 18 C.F.R. § 385.211 (2026).

[2] *Midcontinent Indep. Sys. Operator, Inc.*, Large Load Addition Resource Study Process, Docket No. ER27-25-000 (filed Oct. 2, 2026) ("Transmittal").

[3] *Midcontinent Indep. Sys. Operator, Inc.*, 195 FERC ¶ 61,212, at PP 112-114 (2026) ("Large Load Show Cause Order").

[4] *See Interconnection of Large Loads to the Interstate Transmission System*, Comments of Google LLC, Docket No. RM26-4-000, at 5-6 (filed Nov. 21, 2025); *Midcontinent Independent System Operator, Inc.*, Comments of Google LLC, Docket No. ER26-3552-000, at 2 (filed Sep. 8, 2026) ("Google ZGIA Comments").

timelines and reduce the cost to serve both the load and the generation.[5] Again, Google supports the intent and conceptual direction of LARS.

Nevertheless, Google is filing a limited protest because MISO has filed LARS without accompanying and necessary protections against cost shifting, which prevents the Commission from finding that LARS is just and reasonable. The lack of cost shifting protections is especially concerning because, despite the benefits—especially speed to power—that LARS would promote, it is structured in a way that threatens Google's ability to meet its foundational commitment to ensuring that other retail customers do not bear the costs of serving its data centers, including through the Ratepayer Protection Pledge.[6] Our concern is two-fold. First, LARS upgrades needed to address violations caused by large loads—or caused by the load and generation together—are classified as Baseline Reliability Projects ("BRPs") or "Other" projects. Under current rules, the costs of those project types are recovered from all network customers in a Transmission Pricing Zone. Second, if LARS generating facilities/load end up relying on transmission capacity that other projects were also relying on—a scenario MISO refers to as "overallocation"—MISO would address the resulting transmission constraints through a "future MTEP project," the costs of which are "likely" to be borne by "the load within the transmission pricing zone where the transmission upgrade is required."[7] Under either scenario, MISO could end up saddling residential customers and other existing commercial customers with increased rates resulting from the costs of transmission facilities needed to interconnect and serve large loads. And while MISO indicates

[5] Transmittal at 15 (explaining how LARS will "identify the solution that best fits both the generation and load needs at the lowest cost").

[6] *See, e.g.*, Amanda Peterson Corio, *Supporting the White House Ratepayer Protection Pledge: Google's Approach for Responsible Energy Growth*, Google: The Keyword (Mar. 4, 2026), https://blog.google/innovation-and-ai/infrastructure-and-cloud/global-network/affordability-pledge-responsible-energy-growth/; *PJM Interconnection, L.L.C.*, Protest of Google LLC, Docket No. ER26-3515-000, at 14 (Sep. 3, 2026).

[7] Transmittal at 13.

that it will file a *pro forma* cost shifting agreement in November,[8] the details of that agreement and how it will protect against cost shifts are open questions, which the Commission cannot simply assume away.

To be clear, Google supports both the concept underlying LARS, which will improve speed to power and transmission planning, and provisions that protect other network customers against cost shifting. The issue, however, is that MISO has decoupled LARS's speed to power provisions from cost shifting protections. By timing and sequencing its filings in this way, MISO has made it impossible for the Commission to determine that the LARS proposal is just and reasonable. Google remains actively engaged in the ongoing MISO stakeholder process and is hopeful that the anticipated November filing will include the necessary guardrails to hold other network customers harmless, at which point the significant benefits of LARS may be realized without the potential for cost shifting.

Accordingly, to address the cross-subsidization concerns outlined above, the Commission should either reject LARS with guidance indicating that it needs to be filed concurrently with procedures to prevent cross-subsidization or, in the alternative, accept and suspend the proposal, until it can be evaluated alongside any necessary customer protection measures, including the contemplated *pro forma* cost shifting agreement. Regardless of the avenue selected by the Commission, Google supports future implementation of a refined LARS process that mitigates the identified cost-shifting concerns, while still enabling the benefits of a targeted, combined process for studying a large load and its contractually paired generation together.

In addition, MISO must also continue to refine and improve its principal interconnection process, the Definitive Planning Phase ("DPP"), so that all generation resources in MISO—not

[8] *Id.* at 14.

just those paired with large loads—can interconnect on a reasonable timeline. A viable DPP that timely interconnects large quantities of new generation is the single most important step that MISO can take to continue ensuring resource adequacy. On that score, MISO recently took a step in the right direction with its legacy queue acceleration proposal, which is aimed at clearing the DPP-2022 Cycle and preventing "endless" Phase III system impact study restudies for all future DPP cycles.[9] As Google has previously stated, "fixing the sluggish timelines in the DPP is a more durable and lasting solution to MISO['s] interconnection challenges than an endless series of shortcuts, even if some of those shortcuts are merited for the foreseeable future,"[10] and Google therefore urges MISO to continue refining the DPP process even as it continues to develop a workable interconnection pathway for paired load and generation.

A. The LARS Proposal Opens the Door to Shifting the Costs of Serving LARS Pairs onto Other Customers and Future MTEP Cycles

Customers like Google could be prevented from using LARS without violating their Ratepayer Protection Pledge commitments. That is because, under LARS, MISO will study the load and generation in a pair and "any common violations that show up in the generation and load studies [will be] assigned to [BRPs] and Other project types."[11] Only the violations specifically caused by the generator's interconnection are assigned to the generator. Under the MISO tariff, the costs of BRPs and "Other" projects are recovered through Attachment O by the Transmission Owner developing the project, for the portion of the project located in that Transmission Owner's

[9] *Midcontinent Indep. Sys. Operator, Inc.*, Legacy Queue Acceleration Proposal and Request for Expedited Action, Shortened Comment Period, and Waiver of the Sixty-Day Prior Notice Requirement, Docket No. ER26-3813-000 (filed Sep. 21, 2026). MISO requested expedited Commission action on its legacy queue acceleration proposal by no later than October 19, 2026, and an October 19, 2026 effective date. *Id.* at 1-2. That date has passed, and the Commission has not acted on MISO's proposal.

[10] Google ZGIA Comments at 4.

[11] Transmittal at 12; *see* Proposed Tariff, Attach. X § 3.12.4; Proposed Tariff, Attach. FF § I.D.1.b.ii(i).

pricing zone.[12] This means that the cost of transmission upgrades needed to serve a LARS large load—or to address violations caused jointly by the LARS load and its paired generation—will flow into rates paid by other network customers in the zone, and—under current rules—could raise rates paid by residential or other commercial customers. Allocating costs in this way could prevent Google and other signatories from honoring their pledge to "pay for all new power delivery infrastructure upgrades required to service their data centers, including adequate network upgrade costs to ensure that these expenses are not passed on to the ordinary household."[13]

MISO states that the transmission customer serving the large load "remains responsible for the identified BRPs and Other assigned projects."[14] But MISO fails to explain how the tariff provisions proposed in LARS and that are now before the Commission will ensure that result, and therefore hold other network customers harmless. Instead, MISO simply states that cost impacts from the load study "will be assigned to Baseline Reliability Projects and Other type projects," with "cost responsibility flowing from such designation *under existing rules*."[15] But under existing rules, that responsibility flows indiscriminately to the Transmission Pricing Zone, without necessary "hold-harmless" protections for other network customers. Without an explanation on the record, there is no way to ensure that LARS adequately guards against cost shifting, and the filing cannot be deemed just and reasonable.[16]

[12] MISO, FERC Electric Tariff, Attach. FF § III.A.2.c; *id.* § III.A.2.k.

[13] The White House, Ratepayer Protection Pledge (Mar. 4, 2026), https://www.whitehouse.gov/releases/2026/03/ratepayer-protection-pledge/.

[14] Proposed Tariff, Attach. FF § I.D.1.b.ii(g); *see also* Proposed Tariff, Attach. X § 3.12.7.4.

[15] Transmittal at 14; *id.* at 14 n.66 (emphasis added).

[16] MISO could potentially explain in an answer or deficiency letter how LARS sufficiently protects against cost shifting.

In addition, LARS could shift costs onto residential customers and other existing commercial customers by relying on the MTEP process as a backstop to develop projects needed to resolve transmission issues caused by LARS pairs. MISO explains that if it allocates headroom to a LARS generator that has also been allocated to a DPP project—a phenomenon that MISO calls "overallocation"[17]—then any resulting constraints caused by that overallocation "will be formalized in a future MTEP project."[18] Put differently, residential and other commercial customers could be left holding the bag for transmission projects needed to interconnect LARS generators any time MISO "overallocat[es]" available headroom.

That too represents an unacceptable risk of cross-subsidization. That is particularly so given that LARS's design creates the very real risk of overallocation because ongoing DPP cycles do not include LARS requests and the LARS studies do not include DPP projects before they have signed Generator Interconnection Agreements.[19] As a result, each process is based on an incomplete snapshot of the transmission system and how it will operate in practice, which increases the likelihood that the LARS and DPP processes will produce incompatible results. MISO would not, however, reconcile the DPP and LARS study processes until after both are complete,[20] and, if the cumulative impacts of the two separate studies create constraints not identified in either, the upgrades necessary to resolve those constraints will be deferred to the MTEP process.

That result would be unjust and unreasonable and inconsistent with Google's customer-protection commitments, including the Ratepayer Protection Pledge. The Commission should

[17] MISO never explains what it means by "overallocation," but it appears to refer to double allocating headroom to projects in both the DPP and in LARS.

[18] Transmittal at 13.

[19] *Id.* at 12-13, 20.

[20] *Id.* at 20 ("The models from LARS and the DPP process will be reconciled through MTEP.").

require MISO to adopt mechanisms that protect against this result before concluding that LARS is just and reasonable. For example, LARS could be modified to use more conservative assumptions—e.g., accounting for DPP requests that have reached an advanced stage, such as Decision Point II, or explicitly stating that concurrent Large Load study requests (i.e., those in the same project review cycle) are likewise included in the LARS study assumptions—so that MISO avoids "overallocating" transmission headroom. This, in turn, would ensure that large load customers and their paired generators internalize the risk of inaccurate load and generation studies rather than leaving residential customers on the hook for transmission infrastructure needed to serve large loads.[21] Together, rigorous study assumptions and high commercial readiness requirements would allow MISO to study LARS requests based on a more accurate snapshot of the grid, which would protect existing customers from bearing the costs of transmission projects pushed into the MTEP process. Although, as noted below, a sufficiently rigorous agreement to prevent cost shifting could address these concerns, the absence of any such agreement for the Commission to review in the record of this proceeding prevents the Commission from relying on it to find the proposal just and reasonable.

B. Without the *Pro Forma* Cost Shifting Agreement, the Commission Cannot Find LARS Just and Reasonable

MISO's forthcoming *pro forma* cost shifting agreement could address some of the cost allocation issues identified above. But the Commission cannot know for certain until MISO files that agreement with the Commission. MISO states that "a *pro forma* cost shifting agreement will

[21] Further, resolving LARS-driven constraints with future MTEP projects is, at the very least, in tension with the premise of LARS. Indeed, as MISO itself explains, one benefit of a coordinated study is that it identifies an optimized set of upgrades. *See id.* at 15. But if LARS-driven constraints are instead discovered later and resolved through future MTEP projects, the resulting upgrades are developed in the piecemeal fashion that holistic planning is meant to avoid.

need to be executed and any new terms in transmission services agreements will need to be met."[22] But that statement raises more questions than it answers. Without information on what the *pro forma* will cover or how it will work, the Commission cannot be sure that it will, in fact, work to protect residential and other commercial customers from bearing at least some of the costs associated with new large loads. Accordingly, even though MISO states that the cost shifting agreement will be submitted in a separate section 205 filing by November 16, 2026, and that LARS "can be implemented based on the Tariff revisions filed herein and need not await these future filings,"[23] the Commission cannot determine that LARS is just and reasonable because the record lacks such a key piece of the puzzle.[24]

That leaves the Commission with two options to address the cost-shift concerns. It could reject the LARS proposal outright with direction to MISO that if it refiles LARS it must contain adequate protections against cost shifting, including any *pro forma* agreement. Alternatively, because MISO states that the *pro forma* cost shifting agreement will be filed in November, the Commission could accept and suspend the proposal and consolidate it with the MISO Large Load Show Cause proceeding, in order to evaluate the proposal together with the cost shifting agreement. Either way, Google urges the Commission to direct MISO toward future implementation of a refined LARS process that mitigates the identified cost-shifting concerns, while enabling the benefits that such a process would deliver.

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[22] *Id.* at 14.

[23] *Id.* at 14 n.66.

[24] *See Advanced Energy Mgmt. All. v. FERC*, 860 F.3d 656, 662 (D.C. Cir. 2017) ("When acting on a public utility's rate filing under section 205, the Commission undertakes 'an essentially passive and reactive role' and *restricts itself to evaluating the confined proposal*." (quoting *City of Winnfield v. FERC*, 744 F.2d 871, 875-76 (D.C. Cir. 1984) (emphasis added)).

C. LARS Opens the Door to Undue Discrimination

Finally, Google is concerned that LARS opens the door to undue discrimination and could undermine core open access principles by making load-serving entities ("LSEs") the gatekeepers of the LARS process. Under MISO's proposal, LARS applications must be submitted through a designated LARS Associated Transmission Customer, which MISO indicates is typically the LSE. This appears to give LSEs discretion to determine whether and under what circumstances to submit a LARS application because it gives the LSE the central role of submitting applications, with no guardrails should an LSE simply decline to submit an application on behalf of an independent generator. This concern is particularly acute given that many of the states within MISO's footprint are vertically integrated, and vertically integrated utilities have a structural incentive to favor their generators over those that are independently owned.[25] While Google recognizes that LSEs have an obligation to serve load and are responsible for submitting load study requests, making LSEs gatekeepers for the LARS process will unnecessarily restrict supply available to serve new large loads, particularly where independent generators have direct offtake arrangements with loads. Google encourages FERC to provide targeted guidance to MISO to modify the proposal to include protections providing that all forms of generation, including independent generation, have nondiscriminatory, direct access to the expedited generation interconnection study process under LARS. This could include requirements to file a LARS application that meets objective criteria, an ability for independent generators to secure Commission resolution of disputes with the relevant LSE, similar to how the Commission resolves unexecuted generator interconnection agreements, or an alternative mechanism that addresses these concerns.

[25] *Cf. Am. Clean Power Ass'n v. FERC*, 54 F.4th 722, 728 (D.C. Cir. 2022) (explaining that "a majority of MISO-region transmission owners also generation facilities," which gives rise to a risk that those vertically integrated transmission owners could engage in undue discrimination).

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon each person designated on the official service lists compiled by the Secretary of the Commission in these proceedings.

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Washington, D.C.

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